



SPONSOR: Rep. Osienski & Rep. K. Williams & Sen. Cruce &
Sen. Townsend
Rep. Wilson-Anton; Sen. Walsh

HOUSE OF REPRESENTATIVES
153rd GENERAL ASSEMBLY

HOUSE BILL NO. 130

AN ACT TO AMEND TITLES 14 AND 19 OF THE DELAWARE CODE RELATING TO BARGAINING UNITS.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF DELAWARE:

1 Section 1. Amend Chapter 40, Title 14 of the Delaware Code by making deletions as shown by strike through and
2 insertions as shown by underline as follows:

3 § 4020. Bargaining unit information and access.

4 (a) Within 14 calendar days from the date of hire of a bargaining unit employee, a public employer must
5 provide the following contact information of the bargaining unit employee to an exclusive representative in a secure format
6 agreed to by the exclusive representative: name; position; worksite location, including location within a facility when
7 appropriate; employee identification number; home address; home and personal cell phone numbers on file with the public
8 employer; date of hire; and work email address and personal email address on file with the public employer.

9 (b) In January and October of each year, beginning in January 2026, a public employer must provide to an
10 exclusive representative in a secure format agreed to by the exclusive representative the following information for all
11 bargaining unit employees: name; position; worksite location, including location within a facility when appropriate;
12 employee identification number; home address; home and personal cell phone numbers on file with the public employer;
13 date of hire; and work email address and personal email address on file with the public employer.

14 (c) A public employer must allow an exclusive representative to communicate with bargaining unit members using
15 the members' employer-issued email addresses regarding collective bargaining, the administration of collective bargaining
16 agreements, the investigation of grievances, other workplace-related complaints and issues, and internal matters involving
17 the governance or business of the exclusive representative, consistent with the employer's generally applicable technology
18 use policies.

19 (d) A public employer must allow an exclusive representative to meet with bargaining unit members in facilities
20 owned or leased by the public employer regarding collective bargaining, the administration of collective bargaining
21 agreements, grievances and other workplace-related complaints and issues, and internal matters involving the governance
22 or business of the exclusive representative, provided the use does not interfere with governmental operations. Meetings
23 conducted in government buildings pursuant to this subsection must not be for the purpose of supporting or opposing any

candidate for partisan political office or for the purpose of distributing literature or information regarding partisan elections.
An exclusive representative conducting a meeting in a government building or other government facility pursuant to this
subsection may be charged for maintenance, security, and other costs related to the use of the government building or
facility that would not otherwise be incurred by the government entity.

Section 2. Amend Chapter 13, Title 19 of the Delaware Code by making deletions as shown by strike through and insertions as shown by underline as follows:

§ 1320. Bargaining unit information and access.

(a) Within 14 calendar days from the date of hire of a bargaining unit employee, a public employer must provide
the following contact information of the bargaining unit employee to an exclusive representative in a secure format agreed
to by the exclusive representative: name; position; worksite location, including location within a facility when appropriate;
employee identification number; home address; home and personal cell phone numbers on file with the public employer;
date of hire; and work email address and personal email address on file with the public employer.

(b) In January and October of each year, beginning in January 2026, a public employer must provide to an
exclusive representative in a secure format agreed to by the exclusive representative the following information for all
bargaining unit employees: name; position; worksite location, including location within a facility when appropriate;
employee identification number; home address; home and personal cell phone numbers on file with the public employer;
date of hire; and work email address and personal email address on file with the public employer.

(c) A public employer must allow an exclusive representative to communicate with bargaining unit members using
the members' employer-issued email addresses regarding collective bargaining, the administration of collective bargaining
agreements, the investigation of grievances, other workplace-related complaints and issues, and internal matters involving
the governance or business of the exclusive representative, consistent with the employer's generally applicable technology
use policies.

(d) A public employer must allow an exclusive representative to meet with bargaining unit members in facilities
owned or leased by the public employer regarding collective bargaining, the administration of collective bargaining
agreements, grievances and other workplace-related complaints and issues, and internal matters involving the governance
or business of the exclusive representative, provided the use does not interfere with governmental operations. Meetings
conducted in government buildings pursuant to this subsection must not be for the purpose of supporting or opposing any
candidate for partisan political office or for the purpose of distributing literature or information regarding partisan elections.
An exclusive representative conducting a meeting in a government building or other government facility pursuant to this

- 53 subsection may be charged for maintenance, security, and other costs related to the use of the government building or
54 facility that would not otherwise be incurred by the government entity.

SYNOPSIS

This Act addresses information and access rights relating to bargaining units, which are defined under existing law as groups of public employees designated by the Public Employment Relations Board as appropriate for representation by an employee organization for purposes of collective bargaining.

Section 1 of the Act amends the Public School Employment Relations Act in Title 14 of the Delaware Code. It provides that a public employer must provide an exclusive bargaining representative with certain contact information of bargaining unit employees, (i) within 14 calendar days of their hiring and (ii) in January and October of each year, starting in January 2026. In addition, a public employer must allow an exclusive representative to communicate with bargaining unit members using their employer-issued email addresses regarding collective bargaining, the administration of collective bargaining agreements, the investigation of grievances, workplace-related complaints and issues, and internal matters involving the exclusive representative's governance or business.

Section 2 of the Act makes these same amendments to the Public Employment Relations Act in Title 19 of the Delaware Code.